Filed on behalf of: Petitioner
Witness: Kathryn Jackson, Headteacher
No of Witness Statement: 1st
Exhibit: none
Dated: 14 December 2016

**CASE NO: 415 of 2015**

**IN THE HIGH COURT OF JUSTICE**

**IN BANKRUPTCY**

**IN THE MATTER OF DIERK HILLERN THOMAS' Petition filed in the Norwich County Court on 04 December 2014 under number 346 of 2014 ("the Petition") and in the matter of an order dated 27 January 2015 made by District Judge Reeve transferring the Petition to the High Court and that transfer being completed by 02 February 2015 when the High Court allocated the Petition the number 415/2015.**

**AND**

**IN THE MATTER OF THE INSOLVENCY ACT 1986**

**DIERK HILLERN THOMAS**

**Petitioner**

**AND**

**THOMAS HAEDERLE**

**A Creditor**

---

**WITNESS STATEMENT OF KATHRYN JACKSON**

---

I, **Kathryn Jackson,** headteacher at St. Mary's (Endowed) Church of England VA Primary School, Chapel Road, Roughton, Norfolk NR11 8AF, make this witness statement on request of the Petitioner Dierk Thomas. The matters in this witness statement are true to the best of my knowledge and belief and are based on my own understanding and recollection of events, save where I expressly say otherwise. I state as follows:

1. I have been the headteacher at St. Mary's Primary School in Roughton since September 2014. Until July 2014 the headteacher was Mrs. Kossowicz. She met Mr Thomas for the first time in mid June 2014 to have a conversation about schooling for Mr Thomas' two children.

2. Mr and Mrs Thomas came with their two children to school at the beginning of July 2014. Both children then participated in class for few days. At that time already, our teachers assessed both children and decided in which year they were to be grouped into, when the autumn turn would start.

3. I taught and have known both children of Michaela and Dierk Thomas since the school term started in autumn 2014. I have also known both parents since then.

4. In July 2014, one of our teachers, Melissa Morison, introduced Mr and Mrs Thomas to some of the other parents, especially to one of their new neighbours, Mrs Melanie Hickling. Family Hickling and family Thomas soon became friends.

5. Family Thomas had just moved into Flint Barn in Back Lane. They were just down the road from our school.

6. Just a few days after the autumn turn started, it was the birthday of family Thomas' younger child, Family Thomas invited 5-10 classmates of their younger child and their mothers for a birthday party.

7. Family Thomas quickly became a member of our small community. Mrs Thomas supported events in school, such as the "German day". They were present and well integrated. The children learned to speak English quickly and made friends.

8. Family Thomas were always very open and candid with me.

9. Both, Mr and Mrs Thomas either brought or picked up their children to and from school. Their children had the expected attendance and performed well. Whenever there was a concern, Mr and/or Mrs Thomas were available for discussion. Especially during the first months we sat several times together to discuss schooling matters.

10. The teachers and the administration personnel of our school always knew how to reach Mr and Mrs Thomas. When a child happened to become ill during school, one of the parents was at the school to pick that child up within a short period of time. Mr Thomas was sometimes on business trips, but this was for a few days only.

11. Towards the end of the school term family Thomas leased and moved into an adjacent building to Primrose Farm Barns, where Family Hickling lived in the main building. We are a small community, so we noticed and were also told so by Mr Thomas. By then the community in Roughton knew who family Thomas was and where they lived.

12. By that time both children mastered their English and performed in class at or even above average. Both children had made friends with a selection of classmates; they were both well liked by classmates and teachers. Both showed a higher than average social competence.

13. About early 2015 family Hickling acquired and started renovation of the "Hill House Farm" property which is also very close to our school. Michaela Thomas had decided to lease one of the buildings, called "Eastward Skies" for a long-term lease, while it was still under construction. This was about in June 2015. The building was planned to be ready for moving in as of August 2015. Mrs and Mr Thomas were as excited about this as were their both children.

14. It was visible to us teachers at the school that Melanie Hickling and Michaela Thomas had become friends. Mrs Hickling was excited about living on one property with family Thomas.

15. When autumn term started in September 2015, Mr and Mrs Thomas, together with one of their children, personally informed me, that Mrs Thomas had taken the decision to leave England due to many difficult circumstances she had lived through over the recent weeks and months. She told me that she was of the opinion that such a decision was best for her and the children. I noticed how much this decision frustrated her husband Dierk Thomas.

16. The decision was a surprise to all of our teachers and many of the children at school. We had all left for the summer holidays already full of plans for the new term. I felt how difficult this was for both children of Mr and Mrs Thomas as they had been looking forward to the next term very much. Many of their artwork items from several projects were still exhibited at our school when they left for the summer. Both children had also very actively participated in our gardening project, planting a large variety of different plants and vegetables, some of which expected to be ready for harvest in autumn. They were very keen to harvest and to see the various fruit trees, which they helped to plant, carry fruits in the next summer.

17. I know that it has also been very difficult for family Hickling to accept Mrs Thomas' decision and to come to a settlement with her, since they had made an extra effort to finish constructions in time for family Thomas to move in. I heard that they had even made some custom adjustments to the building just so that it suited the family's needs.

18. Mr Thomas has kept in contact with us since then. We teachers told him that the former classmates of their children were often asking how they were and that everybody would appreciate to see them back. I heard that one of our teachers, Melissa Morison, even suggested that both children visit us. We invited them to participate in class.

19. The few times Mr Thomas has managed to spend time in Roughton during school hours since then, he has come by, either to pick up things for his children or just to say hello. Last time he was here was in autumn 2016.

20. I hand this statement to Mr. Thomas, so that he may serve it, as it may be required.

I believe that the facts stated in this witness statement are true.

Signed

Kathryn Jackson

Dated 14 December 2016